IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.144

C.P.(CAA)/65(AHM)2020 in
C.A.(CAA)/39(AHM)2020

Order under Section 230-232 of the Companies Act 2013

IN THE MATTER OF:

George Samuel **.....Applicant**
Liquidator of Alps Leisure Holidays Pvt.Ltd.

Order delivered on ..21/12/2022

Coram:

Dr.Madan B. Gosavi, Hon'ble Member(J)
Mr.Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for the pronouncement of the order.The order is pronounced in the open court, vide separate sheet.

-SD- -SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

DR. MADAN B GOSAVI
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-1

CP (CAA) No.65/NCLT/AHM/2020 in
CA(CAA)No.39/NCLT/AHM/2020
In
IA No.532 of 2019
In
CP (IB) 178 of 2017

[Application under Sections 230 of the Companies Act,2013 read with the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016 in pursuance of Liquidation proceedings initiated under Section 33 of the IBC Code vide order dated 01.10.2019 in IA No.532 of 2019 in CP (IB) 178 of 2017]

Scheme of Compromise / Arrangement
Between
Alps Leisure Holidays Private Limited (In Liquidation)
Through the Liquidator,
And
Shareholders and Secured Creditors

In the matter of:

Mr. George Samuel
Liquidator of
ALPS Leisure Holidays Pvt. Ltd.
110 Atria – B, Sargasan Circle
S G Highway
Gandhinagar-382 421 ..... Applicant

In the matter of:

CP (IB) CP (IB) 178 of 2017

Small Industries Development
Bank of India
Navjivan Amrit Jayanti Bhavan

Navjeevan Post Office
1st Floor, Post Box No.10
Ahmedabad-380 014 ..... Petitioner/
Financial Creditor`

Versus

Alps Leisure Holidays Pvt.Ltd.
Ground Floor, Pushit Complex
Nr. IRTI Stambh Raj Mahel Road .....Respondent/
Baroda-390 001 Corporate Debtor
Gujarat

Appearance:

For the Petitioner : Mr. Jaimin Dave, Advocate.

For the Regional Director : Mr. B. Rama Ambedkar, Asst. Director

For the Income Tax Department : Ms. Pankti Shah, Advocate on behalf of Ms. Maithili Mehta, Advocate for the Income Tax Department.

Order delivered on 21.12.2022

Coram: Dr.Madan Bhalchandra Gosavi-Member (Judicial)
Mr. Kaushalendra Kumar Singh-Member(Technical)

ORDER

1. The present Company Petition has been filed by the Liquidator of M/s. ALPS Leisure Holidays Private Limited (under Liquidation) under Sections 230 of the Companies Act, 2013 read with Rule 3 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 **(CAA Rules)** also read with Regulation 2B of the Insolvency and Bankruptcy Board of India (Liquidation Process) Regulations, 2016, (**Liquidation Regulations)** seeking approval of the Scheme of

Arrangement in the nature of compromise between the Shareholders, Secured and Unsecured Creditors of the Company (under Liquidation) and reorganization of the share capital of the company in Liquidation.

2. The averments made by the Applicant/Liquidator are summarized as under:

i) Small Industries Development Bank of India (SIDBI) filed a petition under Section 7 of the Insolvency and Bankruptcy Code, 2016 (Code) bearing No.CP (IB) 178 of 2017 for initiation of the Corporate Insolvency Resolution Process (CIRP) against ALPS Leisure Holidays Pvt. Ltd. (Corporate Debtor). This Adjudicating Authority vide its order dated 13.11.2018 admitted the Corporate Debtor in CIRP and appointed Mr. Goerge Samuel as an Interim Resolution Professional (IRP) for conducting the CIRP of the Corporate Debtor, who was later confirmed as a Resolution Professional (RP) the applicant herein of the Corporate Debtor. The applicant, while discharging his duty as RP, constituted the Committee of Creditors which comprised of SIDBI and the erstwhile Oriental Bank of Commerce (now Punjab National Bank). The final collation of the claims along with details of the Stakeholders of the Corporate Debtor are as under:-

Financial Creditors

Sr. No.	Name of the Creditor	Amount		
		Claimed	Admitted	% of Share
1	Small Industries Development Bank of India, Ahmedabad.	Rs.8,73,44,248/-	Rs.8,73,44,248/-	99.697

2	Oriental Bank of Commerce, Vadodara.	Rs.2,65,731/-	Rs.2,65,731/-	0.303
	Total	Rs.8,76,09,979/-	Rs.8,76,09,979/-	100.00

Operational Creditors

Sr. No.	Name of the Creditor	Amount	
		Claimed	Admitted
1	CNK & Associates, LLP, Vadodara.	Rs.3,40,766/-	Rs.3,40,766/-
2	Asst. Commissioner of Income Tax, Vadodara.	Rs.1,37,87,520/-	Rs.1,37,87,520/-
	Total	Rs.1,41,28,286/-	Rs.1,41,28,286/-

Other Creditors

Sr. No.	Name of the Creditor	Amount	
		Claimed	Admitted
1	Sandip G Pansuriya	Rs.18,00,000/-	Rs.16,25,000/-
2	Amit Maganbhai Dev	Rs.3,00,000/-	Rs.3,00,000/-
	Total	Rs.21,00,000/-	Rs.19,25,000/-

ii) In the 7th CoC meeting dated 30.07.2019, it was unanimously resolved to liquidate the Corporate Debtor in view of the non-receipt of any resolution plan(s). The applicant had filed an application being IA No.532 of 2019 in CP (IB) 178 of 2017 under Section 33 of the Code for passing an order of Liquidation of the Corporate Debtor. Pursuant to the application filed by the applicant, this Adjudicating Authority vide order dated 01.10.2019 passed an order for initiation of the Liquidation process of the Corporate Debtor and appointed the applicant as the Liquidator of the Corporate Debtor.

iii) Within a period of 90 days from the date of the Liquidation, i.e. on 03.12.2019, a Scheme of Arrangement in the nature of Compromise was received in accordance with the provisions of the Regulation 2B of the Liquidation Process read with Sections 230-232 of the Companies Act, 2013 from Mr. Mehul Thakkar-the Proprietor of Master Touch Concepts, a Power of Attorney holder of three erstwhile Shareholders of the Corporate Debtor namely Shilpa Mukesh Shah, Kalpnaben Gandhi and Chaya Gandhi.

iv) The said scheme was placed before the stakeholder consultation committee (SCC) of the Corporate Debtor in the meeting dated 12.12.2019 wherein the SCC resolved to seek an extension of the Liquidation period of 90 days to consider the Scheme of Compromise. Accordingly, the Applicant filed an application bearing No.808 of 2019 for the extension of time for considering the scheme of arrangement. This Tribunal vide order dated 19.12.2019 allowed the extension of 90 days from 29.12.2019.

v) Due to the national Lockdown imposed by the Government of India to prevent the Covid-19 Pandemic, the petitioner could not file an application for convening the meetings of the Equity Shareholders, Secured and Unsecured Creditors of the Corporate Debtor within the extended time.

vi) On resumption of functioning of this Tribunal, after National Lockdown the Applicant herein had preferred Company Scheme (first motion) Application being CA (CAA) No.39 of 2020, wherein it was prayed for seeking appropriate directions for holding and convening of the meetings of the Equity Shareholders, Secured Creditors and the Unsecured Creditors of the Corporate Debtor.

vii) The Applicant herein had also sought an extension for a further period of 120 days for completing the process of the proposed Scheme of arrangement under Sections 230-231 of the Companies Act, 2013. This Tribunal vide order dated 23.07.2020 allowed the said Company Application inter alia, directing for holding and convening of meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Corporate Debtor. This Tribunal had also granted extension for further period of 120 days for completing the process of the proposed scheme of arrangement in the nature of compromise. This Tribunal has further directed the Applicant to serve notice of the meetings to (i) the Central Government through Regional Director, North Western Region; (ii) the Registrar of Companies, Gujarat; and (iii) the concerned Income Tax Authorities.

viii) In compliance with the order dated 23.07.2020 passed by this Tribunal, notices of the meetings indicating the day, date, place and time together with a copy of the Scheme pursuant to Section 102 of the Companies Act, 2013 read

with Sections 230-232 and Rule 6 of the Companies (CAA) Rules, 2016 along with the prescribed form of proxy was sent individually to the Equity Shareholders, Secured Creditors and Unsecured Creditors of the Corporate Debtor (in liquidation) as on 03.08.2020. The notice of the meeting of the Equity Shareholders, Secured Creditors and Unsecured Creditors was also published on 05.08.2020 as directed by this Tribunal in English Daily "The Economic Times" and Gujarati Daily in "Divya Bhaskar". The applicant has also served notice of meeting in Form No. CAA.3 to (i) the Central Government through the Regional Director, North Western Region; (ii) the Registrar of Companies, Gujarat; and (iii) the Concerned Income Tax Authorities. The Applicant complied with the aforesaid directions of this Tribunal and filed an Affidavit dated 23.08.2020 with respect to the service of Notice as well as the publication of notices in the newspapers by the Chairman of the meeting as directed by this Tribunal vide order dated 23.07.2020.

ix) The aforesaid meetings were duly convened and held on 05.09.2020 and the Chairman has filed its report with regard to the result of the said meetings before this Tribunal on 10.09.2020. The Equity Shareholders had approved the proposed scheme with 98.50% votes in value and the majority in number by casting their votes either through Postal Ballot or remote e-voting as well as casting valid votes at the meeting. The Unsecured Creditors of the Corporate Debtor approved the proposed scheme with

93.35% votes of the total value of Unsecured debt presented and casting valid votes at the said meeting.

However, the sole secured creditor namely SIDBI casted its vote against the proposed scheme of arrangement in the nature of compromise. Hence, the scheme was initially not approved by the requisite majority of Secured Creditors.

Thereafter, the proposed amount of Rs.6,36,00,000/- to SIDBI was enhanced to Rs.7,40,00,000/- vide addendum dated 04.09.2020 and then to Rs.8,70,00,000/-, vide addendum dated 18.09.2020. Thereafter the SIDBI has given its approval for the proposed scheme vide letter dated 12.11.2020 followed by Affidavit dated 26.09.2022.

Moreover, vide an Affidavit dated 08.01.2021, the Applicant herein has submitted that the shareholders and unsecured creditors of the Corporate Debtor in the majority have given their no objection to the terms contained in the addendum dated 18.09.2020 to the original scheme of compromise. Under such circumstances, the proposed scheme dated 28.02.2020 along with the addendums dated 04.09.2020 and 18.09.2020 came to be approved by the requisite majority of the Equity Shareholders, Secured and Unsecured Creditors of the Corporate Debtor.

x) Thereafter, the applicant filed this petition (second motion) before this Tribunal seeking sanction of the proposed Scheme, along with application bearing No.858 of 2020 for condoning the delay of 64 (sixty-four) days in filing the present application on the ground of further negotiations between the proposer of the Scheme and the sole secured creditor. The delay in filing the second motion application was condoned and the said application was allowed by this Tribunal on 04.12.2020.

xi) This Tribunal by order dated 04.12.2020 also admitted this petition and directed for publication of notice of hearing in "Indian Express" English Daily, Vadodara Edition and "Sandesh" Gujarati Daily, Vadodara Edition not less than ten days before the date fixed for hearing, calling for objections, if any, on or before the date of hearing. This Tribunal also directed to issue notice to the Regional Director, the Registrar of Companies, the Official Liquidator and the Income Tax Authority informing the date of hearing.

xii) Pursuant to the aforesaid order dated 04.12.2020 passed by this Tribunal, the Applicant herein filed an affidavit dated 08.01.2021 with this Tribunal submitting the proof of service of notice to the statutory authorities as well as the publication of notice in newspapers as directed by this Tribunal.

xiii) In response to the notices served upon the statutory authorities, the office of the Regional Director, North-Western Region has filed its representation dated 11.02.2021 wherein the RD has made the following observations along with the report of the Registrar of Companies. The details of the observations of the said statutory authorities and response of the applicant are as under;

a) In paragraph2 (c), the RD has observed that the Scheme of Compromise is presented by the erstwhile shareholders of the Corporate Debtor namely Mrs. Shilpa Mukesh Shah, Mrs. Kalpana Gandhi and Mrs. Chaya Gandhi consisting of 25.2% shares. After approval of the Scheme, 56.79% of the existing shareholding of the company belonging to 9 out of 10 shareholders will be taken over by Mr. Mehul Thakkar**.** The remaining shareholding to the extent of 43.21% presently held by Mr. Alpesh Gandhi, the existing shareholders will be retained by him. The payment to the rest of the shareholders will be for an amount of Rs.90,89,059/- against the value of their shares of Rs.170,37,000/- so the payment is only 53.349% of the face value of their shares. However, it is not clear as to how and why less payment is made to the shareholders vis-à-vis the value of their shareholding.

b) In paragraph 2 (d), the RD has observed that as per

part-III of the Scheme, after relinquishing the property of the Corporate Debtor by the secured creditor the same may be transferred in the name of Master Touch Concept or in the name of Mehul Thakkar as may be mutually decided between the parties.

However, the applicant in his reply dated 04.09.2020 at para 5 has stated that the property of the company will be transferred in the name of Mr. Mehul Thakkar and Mr. Alpesh Gandhi. Thus, the RD prayed the Tribunal to direct the applicant to clarify whether the company's property can be transferred to the name of an individual, if yes, and then how the company will proceed as a going concern after transferring the property.

c) In paragraph 2 (e), the RD has observed that as per part IV of the scheme, it is mentioned that the entire payment proposed under the Scheme will be paid within 60 days from the dae of approval of the Scheme. However, part III of the scheme, it is showing that payment to the unsecured creditors will be made after 60 days from the date of approval of the scheme. Hence, the RD prayed the Tribunal to direct the applicant to undertake to make the payment to the unsecured creditors within 60 days from the date of approval of the scheme and to pay the interest on the delayed payment.

d) In paragraph 2 (f), the RD has observed that as per MCA-21 data M/s. CNK & Associates LLP is the auditor of the company up to 28.08.2018. However, as per the balance sheet as at 31.03.2018, the audit report is signed by Vinesh Mehta & Company, Chartered Accountants. But no e-Form ADT-1 has been filed on MCA portal for appointment of the later Chartered Accountant firm. Hence, the RD has prayed the Tribunal to direct the applicant to comply with aforesaid provisions for filing the form for the appointment of an auditor and place on record all the relevant facts of the matter.

e) In paragraph 2 (g), the RD has observed that certificate issued under Section 133 of the Companies Act, 2013 dated 09.03.2020 by M/s. R. Choudhary & Associates, Chartered Accountant whereas Section 232(3)(j) of the Companies Act, 2013 requires the certificate to be given by the auditor who has audited the accounts of the company. Hence, the RD has prayed the Tribunal to direct the applicant to submit the auditor's certificate under Section 133 of the Companies Act, 2013, who has audited the accounts of the company.

f) In paragraph 2 (h), the RD has observed that as per the annual report 2017-18 available on MCA data base, the corporate debtor have 10 number of

shareholders with total number of 30,00,000 shares. However, as per Annual Report 2018-19, the corporate debtor had 9 number of shareholders with total number of shares 24,74,300. It appears that name of one shareolder Mr.Patel Jignesh Hariharbhai is not included in the list of shareholders. Hence, the RD has prayed this Tribunal to direct the applicant to place on record all the relevant facts of the matter.

g) In paragraph2 (i), the RD has observed that in para VI of the Scheme, it is stated that the company will comply with all relevant Accounting Standards with regard to the reduction of capital (if any). However, there is no proposal in the scheme about reduction of share capital. Therefore, the RD has prayed this Tribunal to direct the applicant to place on record relevant facts of the matter.

h) In paragraph 2 (j), the RD has observed that at the time of filing the first stage application before this Tribunal there are three (3) secured creditors in the corporate debtor. However, as per part IV of the Scheme, it is mentioned that only two secured creditors, i.e. SIDBI and OBC. Hence, the RD has prayed this Tribunal to direct the applicant to clarify and place on record all the relevant facts of the matter.

i) In paragraph 2 (k), the RD has observed that the

scheme is silent about the status of the existing employees of the corporate debtor and their employment after running the company as a going concern. Hence, the RD has prayed this Tribunal to direct the applicant to submit the proposal for the employment of the existing employees of the corporate debtor after running the company as a going concern.

j) The Registrar of Companies (RoC) in its report has raised the same observations as raised by the RD in his observations.

xiv) The applicant has filed an affidavit dated 16.03.2021 read with an additional affidavit dated 26.09.2022 wherein the applicant has dealt with the observations of the RD as well as RoC, which are as under;-

a) In response to the observation of the RD in para 2 (c), the applicant submitted that the Scheme of Arrangement in the nature of compromise is approved by all the shareholders. It is further submitted that if the assets of the company would have been liquidated, the shareholders would not have received a single penny. Further, in any case, the Regional Director cannot sit in appeal over the wisdom of shareholders and once shareholders have consented to the proposed scheme of arrangement, it is not open for Regional Director to raise such an objection.

b) In response to the observation of the RD in para 2 (d), the applicant submitted that vide letter datd 12.01.2021, the applicant had informed the Registrar of Companies that the corporate debtor will continue as a going concern and only some part of the preperties of the company will be transferred or sold without affecting the going concern status of the company.

c) In response to the observation of the RD in para 2 (e), the applicant submitted that as per Part III of the Scheme, sundry creditors are to be paid off within 60 days from the approval of the scheme and even in Part IV of the Scheme it is mentioned that unsecured creditors are to be paid within 60 days from the date of the approval of the scheme. Morever, the unsecured creditors have approved the scheme with the requisite majority. Under the circumstances, it is not open to the RD or RoC to raise such objection.

d) In response to the observation of the RD in para 2 (f), the applicant submitted that the Balance Sheet and Audit Report of the corporate debtor as on 31.03.2018 is signed by Vinesh Mehta & Co. in its capacity as auditor of the company. The petitioner herein being the liquidator of the corporate debtor company was not aware about default in filing e-form ADT-1 and the same is attributable to the

suspended management of the company.

Furhter it is stated that the General Circular No.08/2020 issued by the MCA, the applicant is under obligation to file e-form on MCA website for all the activities carried out post CIRP or liquidation and the applicant herein has uploaded form ADT-1 and updated name of Vinesh Mehta & Co. Hence, the aforesaid observation of the RD stands complied with.

e) In response to the observation of the RD in para 2 (g), the applicant furnished the certificate of auditor of the company under Section 133 of the Companies Act, 2013 which is annexed as Annexure-B with the affidavit dated 16.03.2021

f) In response to the observation of the RD in para 2 (h), the applicant has submitted that the company is having 10 shareholders with total number of 30,00,000 shares. Further, even in the annual report of 2018-19 30,00,000 shares are showing. However, the name of the shareholder Mr. Jignesh Hariharbhai Patel was inadvertently missed out from the list of shareholders. However, notice of the meeting of the shareholders was served upon the said shareholder which is evident from page no.217 of the petition. Hence, all the 10 shareholders had attended the meeting and the approved the scheme of arrangement in the nature of compromise. Mr.

Jignesh Patel had also attended the meeting and voted in favour of the scheme.

g) In response to the observation of the RD in para 2 (j), the applicant submitted that there are only two secured creditors in the corporate debtor company. In paragraph 29 of the Company Petition filed before this Tribunal, it was inadvertently mentioned that there are three secured creditors. In fact, there are only two secured creditors, i.e., SIDBI and Oriental Bank of Commerce. It is further clarified that the third entry pertains to a loan earlier taken for a Bajaj Bike from Oriental Bank of Commerce, which had been subsequently paid off to the creditor but still the same is shown in the books of account due to entries not being made to effectuate the payments made.

h) In response to the observation of the RD in para 2 (g), the applicant submitted that the existing employees of the company will be continued after the approval of the scheme of arrangement.

xv) The Official Liquidator filed his observaitons on 19.02.2021 wherein the OL has not made any adverse observations. However, the OL has stated that since revised offer and the amount offered to SIDBI earlier in the scheme are totally different and there is also an error in the name of the company mentioned in the scheme, the applicant is required to revise the scheme and the same

be placed on record of this Tribunal.

The OL has further prayed that this Tribunal be directed the corporate debtor to ensure statutory compliance of all applicable laws.

In response to the aforesaid observation of the OL, the applicant has submitted that in its affidavit dated 16.03.2021, the addendum of the scheme dated 18.09.2020 has already been placed on record of this Tribunal and the proposed scheme has been approved by the secured creditors with requisite majority, the revised scheme along with the corrected name of the company is also placed on record.

xvi) The persons proposing a scheme of compromise are eligible to present a scheme of compromise and they are not debarred under Section 29A of the Insolvency and Bankruptcy Code, 2016 in view of Section 240A of the IB Code as M/s. ALPS Leisure Holidays Private Limited (company under Liquidation) is an MSME. A copy of the MSME Certificate is produced at ANNEXURE-K (Page No. 173).

xvii) The present scheme of arrangement provides for repayments of debts of all the secured and unsecurted creditors of the company to the extent of amount specified in the proposed scheme. The present scheme aims to keep the corporate debtor as a going concern by paying off the

debts of the creditors of the company and to reorganize the Share Capital. The scheme will neither prejudicially affect anyone nor public interest in any manner. In case the present petition is not allowed, the corporate debtor will be liquidated. There are bright chances of revival of the corporate debtor in case of approval of the present scheme of arrangement in the nature of compromise.

3. Heard Ld. Counsel Mr. Jaimin Dave for the Liquidator / Applicant and have also gone through the records and the clarification / additional affidavit dated 26.09.2022. It is noted that the proposed scheme is preferred by the erstwhile three shareholders of the corporate debtor, viz., Shilpa Mukesh Shah, Kalpnaben Gandhi, Chaya Gandhi through their Power of Attorney holder Mr. Mehul Thakkar. It is observed that the Equity Shareholders, Secured Creditors and Unsecured Creditors have consented for the proposed scheme of arrangement in the nature of compromise. A copy of the Scheme (modified) is annexed to the application. The proposer of the scheme has proposed to pay (page No.185) as under:-

Sr. No.	To whom to be paid	Amount	When to be paid
1.	SIDBI	Rs.6,36,00,000/-	Rs.1 crore will be paid up within 30 days on approval of the scheme by NCLT. Rs.2,36,00,000/- will be paid within 6 months from approval of the scheme. Rs.3,00,00,000/- will be paid within 181 to 365

			days from approval of the scheme.
2.	OBC	Rs.2,87,895/-	Entire amount will be paid within 60 days from approval of the scheme.
3.	Sundry Creditors	Rs.13,93,046/-	Entire amount will be paid within 60 days from approval of scheme.
4.	CIRP and Liquidation cost	Rs.60,00,000/- or Actual	Entire amount will be paid within 30 days from approval of scheme.
5.	Unsecured Load (outgoing shareholders)	Rs.73,45,000/-	Entire amount will be paid within 24th to 36th month from approval of scheme.
6.	Employees	Rs.4,85,000/-	Entire amount will be paid within 30 days from approval of scheme.
7.	Resort upgradation and maintenance	Rs.75,00,000/-	Entire amount will be paid within 90 to 120 days from approval of scheme.
8.	Marketing and branding	Rs.53,00,000/-	Entire amount will be paid within 120 to 365 days from approval of scheme.
9.	Contigent liabilities, legal expenses and other Mis. Expenses	Rs.40,00,000/-	Entire amount will be paid within 0 to 180 days from approval of scheme.
10.	Working Capital	Rs.50,00,000/-	Entire amount will be paid within 60 to 120 days from approval of scheme.
11.	Shareholder	Remaining amount after above.	To be finalized after the scheme is approved and available balance to be distributed to the outgoing shareholders in equal part.

The proposed amount of Rs.6,36,00,000/- to SIDBI was initially enhanced to Rs.7,40,00,000/- vide addendum dated 04.09.2020 and further enhanced to Rs.8,70,00,000/-, vide addendum dated 18.09.2020. Thereafter, SIDBI has given its consent by way of affidavit for the proposed scheme on 26.09.2022 and thereafter all shareholders and creditors have consented to the addendeum (scheme) dated 18.09.2020, meaning thereby that all the shareholders and creditors have consented to the proposed Scheme of erstwhile shareholders of the company.

4. However, it is noted that a claim of Rs. 1,37,87,520/- has been submitted by the Commissioner of Income Tax Department, Vadodara, but there is no proposal qua the said claim under the scheme. However, in the additional affidavit dated 26.09.2022 filed by the applicant, it has been stated that... "*The claim of income tax falls within the purview of sundry creditors and the proposer of the scheme is bound to deal with the liability of income tax department as per the scheme. It is submitted that subject to remedies available under the law, claim of income tax department will be dealt with as per the company in liquidation and shareholders and creditors*".

5. The applicant has duly complied with all the relevant provisions applicable under the law for the time being in force. Hence, we are of the considered view that the present petition is otherwise complete. The proposed scheme revives the corporate debtor, which is the main object of the IB Code.

4. On the basis of the above facts and submissions and on perusal of the Scheme and the proceedings, it appears that the requirements of the provisions of Sections 230 and 232 are satisfied by the petitioner

company. We are of the considered view that the proposed Scheme of Arrangement in the nature of Compromise is bona fide and in the interest of the shareholders and creditors.

5. Notwithstanding the above, if there is any deficiency found or violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the petitioner.

6. While approving the Scheme as above, we further clarify that this order should not be construed as an order granting any exemption from payment of stamp duty, taxes including income tax, GST etc., or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law.

7. In view of the above, we allow the present petition, with the following directions:-

ORDER

(i) The Scheme of Arrangement in the nature of Compromise (modified Scheme) as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that the same shall be binding upon the Corporate Debtor-ALPS Leisure Holidays Private Limited (in Liquidation), its Shareholders and Creditors and all concerned under the Scheme.

(ii) It is also made clear that the protection available under Section **32A** of the Insolvency and Bankruptcy Code, 2016 shall be available to the Company as well as to the new management to the extent as applicable thereunder.

(iii) As the composite scheme is sanctioned, the liquidation proceedings against ALPS Leisure Holidays Private Limited (in Liquidation)stand closed.

(iv) The legal fees / expenses of the office of the Regional Director are quantified at Rs.10,000/-. The said fees to the Regional Director shall be paid by the Company.

(v) The legal fees / expenses of the office of the Official Liquidator are quantified at Rs.10,000/-. The said fees to the Official Liquidator shall be paid by the Company.

(vi) Filing and issuance of drawn up orders are dispensed with. All concerned authorities to act on a copy of this order along with the Scheme duly authenticated by the Registrar of this Tribunal. The Registrar of this Tribunal shall issue the certified copy of this order along with the Scheme immediately.

(vii) The Company is further directed to file a copy of this order along with a copy of the Scheme with the concerned Registrar of Companies, electronically, along with INC-28 in addition to a physical copy as per relevant provisions of the Act.

20. Accordingly, the Company Petition CP (CAA) No. 65 of 2022 connected with CA (CAA) No. 39 of 2020 stands disposed of.

-SD-
KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-
DR.MADAN B GOSAVI
MEMBER (JUDICIAL)

Sudha

ANNEXURE - A

39

SCHEME OF COMPROMISE / ARRANGEMENT

BETWEEN

ALPS LIESURE HOLIDAYS PRIVATE LIMITED

AND

THEIR SHAREHOLDERS AND SECURED CREDITORS

The Scheme is divided into following parts:

I. Part I — dealing with Introduction;
II. Part II — Prelimary dealing with definitions
III. Part-III – Proposal of Master Touch Concepts
IV. Part- IV deals with Arrangement with secured Creditors
V. Part- V deals with reorganization of share capital
VI. Part- VI Accounting Treatment
VII. Part- VII Amendment to Memorandum & Articles of Association
VIII. Part- VIII deals with general terms and conditions

PART I - INTRODUCTION:

1.

(a) This composite Scheme of Compromise/Arrangement hereinafter referred to as 'the Scheme' provides for compromise by (i) Secured Creditors & (ii) Equity shareholders under sections 230 to 232 of the Companies act 2013 and other applicable provisions of the Companies act, 2013 with The I & B BOI (Liquidation Process) Reg. 2016 reg. 2B. Compromise or arrangement.

(b) The Scheme also provides for various other matters consequential or otherwise integrally connected herewith.

(c) Present Scheme is presented through the Liquidator of the Alps Liesure Holidays Private Limited by the Mr Mehul Thakkar

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

INSOLVENCY PROFESSIONAL

Proprietor of Master Touch Concepts holding power to execute this Scheme

(d) Small Industrial Development Bank of India. (Hereinafter referred to as the "SIDBI" which expression shall unless repugnant to the context or meaning thereof includes its legal representatives, successors and assignees)

(e) Oriental Bank of Commerce. (Hereinafter referred to as the "OBC" which expression shall unless repugnant to the context or meaning thereof includes its legal representatives, successors and assignees)

(f) By a Sanction Letter No RJBO No. 904/ALHPL/SBL dated 07/03/2014 between SIDBI and ALPS LIESURE HOLIDAYS PRIVATE LIMITED, SIDBI had sanctioned the total loan of RS 7,80,00,000/- to ALPS with the terms and conditions mentioned in the Sanction Letter dated 07/03/2014

(g) By a Sanction Letter dated 02/08/2014 date of sanction 31/07/2014 between OBC and ALPS LIESURE HOLIDAYS PRIVATE LIMITED, OBC had sanctioned the total loan of RS 9,66,000/-to ALPS with the terms and conditions mentioned in the Sanction Letter dated dated 02/08/2014

(h) Legal matters details against the company are as follow:

E-1 In C.P. (I.B.) No. 178/NCLT/AHM/2017 in the case of Small Industries Development Board of India (the Applicant Financial Creditor) Vs. Alps Liesure Holidays Private Limited, admitted the CIRP against the entity vide order dated 13th November, 2018.

E-2 I.A. 532 of 2019 in C.P. (I.B.) No. 178/NCLT/AHM/2017 ordered the liquidation of the company on 01/10/2019

E-3 I.A. is filed before the Hon'ble NCLT, Ahmedabad under Sections 43,44 of the Insolvency and Bankruptcy Code, 2016 against the Promoters of the Corporate Debtor which is pending.

E-4 SIDBI has filed section 138 NI C. Case no 7040/2018 against ALPS which is pending at Rajkot court

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

E-5 Case Pending in DRT SA 298/2017 which has stayed 13(4) measures of SIDBI

(i) There is No Preference Capital in ALPS.

(j) The Scheme is proposed by Mr Mehul Thakkar Proprietor of Master Touch Concepts, POA holder of three Shareholder of Alps Liesure Holidays Pvt Ltd, namely shilpa Mukesh shah, Kalpnaben Gandhi, Chaya Gandhi for necessary action in the interest of the company under section 230 to 232 of the Companies act 2013

(k) Accordingly, this Scheme of Compromise/Arrangement ("Scheme") is being presented and for various other matters consequential, supplemental and/ or otherwise integrally connected therewith pursuant to Sections 230 to 232 of the Companies act 2013 and other relevant provisions of the Companies Act, 2013.

PART II-PRELIMARY:

2.

(A) DEFINITIONS:

a) "**The Act**" means the Companies Act, 2013 or any statutory modifications thereto or re- enactment thereof.

b) "**The Tribunal**" means the National Company Law Tribunal, Ahmedabad Bench.

c) "**The Effective Date**" or "Coming into effect of this Scheme" means the date on which a certified copy of the order of the Tribunal, that may be passed sanctioning this Scheme, is filed with the Registrar of Companies, Gujarat at Ahmedabad.

d) "**The Scheme**" means this Scheme of Compromise/ Arrangement in the present form or with any modifications or alterations approved or imposed or directed by the Tribunal.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

e) "**The Company**" or "**ALPS**" means ALPS Liesure Holidays Private Limited, a company incorporated on 5/01/2005 under provisions of Companies Act, 1956 CIN U6340GJ2005PTC045256, (**PAN-AAFCA1549Q**) having its registered office address at: "Pushti" Nr. Kirti Stambh, Raj Mahal Road. Vadodara, Gujarat Being Represented by Mr. Alpesh Vasudev Gandhi , holding power of Attorney of all the Directors and Shareholders of the company. Email ID:- alpstravels.tours@yahoo.com

f) **Secured Creditors** means: Banks and Financial Institutions that have lent Secured Financial Assistance to the Company secured by first pari-passu charge on the Fixed Assets of the Company.

g) **Unsecured Creditors** means: unsecured lenders who have lent or deposited monies in the nature of unsecured loans or deposits (not being a deposit within Section 58A of the Act) with the Company but it does not include Trade Creditors or other Current Liabilities incurred in the ordinary course of business.

h) "**Equity Capital**" means 3, 00, 00,000(Three Crores Rupees) Equity Shares of Rs. 10/- each, fully paid up as on Cut-off date.

i) "**Equity Shareholders**" means shareholder holding Equity Shares of Rs. 10/- each, fully paid up as on Cut-off date.

j) **"Master Touch Concepts" (MTC)** – Vadodara having his corporate office at G.F Crown Chambers, R.C. Dutt Road, Alkapuri Vadodara. Being represented by its Proprietor Mr. Mehul Thakkar (Proposed Shareholder and Director) who is going to infuse upto Rs 11, 00, 00,000/- in the company to settle the dues of the secured and unsecured creditors and to make the company going concern in return ALSP will transfer the share or share the profit or transfer the property after the property is relinquished by the secured creditors.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

(B) MAIN OBJECTS OF THE COMPANY

43

1. To promote, represent, organize, undertake, establish, conduct, handle, arrange, manage, own, operate, participate, facilitate, sponsor, encourage and provide the business as package tour organizers and operators for religious, educational and picnic, purposes, daily passenger service operator, conducted tour operators, traveling agent for booking and reserving the accommodations, seats, berths, compartments, coupes, complete bogies on railways, motor ships, motor boats, aero planes, steamships, motor bus and omnibuses, vehicle booking agent, hotel booking agents, authorized railway ticket booking agent, ship booking agent, authorized airlines ticket booking agent, representatives of other travelling agencies to provide necessary services for passport, visa and other international travel documentation, to handle conferences and meetings, to handle inward foreign tourist activities in india and abroad, to organize tours in individuals or groups, domestic and international packages, sight seines, conferences, conventions and other services and to provide for guide, safe deposits and baggage transport and to own, engage, hire, let on hire or arrange buses, coaches, bogies, charter flights, motor launchers, taxies, rickshaws and other vehicles for hotel guest, tourists and passengers.

2. To carry on all type of business of medical tourism, alternative medical therapy like allopathy, homeopathy, ayurvedic, naturopathy, in house accommodation or patients and relatives, to develop resort based on theme park, related indoor and outdoor activities for patients and their relatives, and to do business of hotel, restaurant, conference center, motel, holiday camp, leisure center boarding and lodging, housekeepers, baths, dressing room, laundries, reading, writing and newspaper rooms,

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

libraries, grounds and places of amusements, recreation and sports.

(C) DETAILS OF CHANGE OF NAME, REGISTERED OFFICE AND OBJECTS OF THE COMPANY DURING LAST FIVE YEARS

There was no change in the name, registered office and objects of the Company during last five years.

(D) PROMOTORS & EQUITY SHAREHOLDER OF THE COMPANY

Sr.	Name	Address
1.	Alpesh Gandhi	9/2 Panchvati Society, Navjivan, Ajwa Road, Vadodara.
2.	Shilpaben Shah	4, Ashwin Society, Fatesh nagar, Paldi, Ahmedabad.
3.	Mrs.Chhaya Alpesh Gandhi	9/2 Panchvati Society, Navjivan, Ajwa Road, Vadodara.
4.	Mrs.Kalpnaben Vasudev Gandhi	9/2 Panchvati Society, Navjivan, Ajwa Road. Vadodara.
5.	Dr.Jignesh Haiharbhai Patel	402, Sakkar Annexe 2, B/h Essar petrol pump, Sama – Savlie Road, Vadodara – 390008.
6.	Dr.Heena Jignesh Patel	402, Sakkar Annexe 2, B/h Essar petrol pump, Sama – Savlie Road, Vadodara – 390008.
7.	Mr.Harihar Kachhiya	103, Sonal Appartment, Amul Dairy Road,
8.	Mr.Kantibhai Patel	" ARPAN", Nana Bazar, B/h Municipal Corporation Bureu, Vallabh Vidhyanagar – 388120.
9.	Mrs.Shiviben Patel	" ARPAN", Nana Bazar, B/h Municipal Corporation Bureu, Vallabh Vidhyanagar – 388120.

10.	Mr.Ketan Patel	" ARPAN", Nana Bazar, B/h Municipal Corporation Bureu, Vallabh Vidhyanagar – 388120.

(E) DIRECTORS OF THE COMPANY:-

Sr.	Name	DIN/PAN	Address
1.	Alpesh Gandhi	01829017	9/2 Panchvati Society, Navjivan, Ajwa Road, Vadodara.
2	Dr.Jignesh Haiharbhai Patel	02436672	402, Sakkar Annexe 2, B/h Essar petrol pump, Sama – Savlie Road, Vadodara – 390008.
3.	Nikhil Hasmukhlal Shah	05306035	203, Madhuram Complex, Siddhanath Road, Vadodara 390002

(F) AUTHORISED AND PAID UP SHARE CAPITAL

The details of authorized and paid up Share Capital of the Company as on 30/11/2019 is as under:-

Authorized Capital

No and Type of Shares	Rs
30,00,000 Equity Share of Rs 10/- Each	3,00,00,000/-
Total	3,00,00,000/-

Paid-up Share Capital

No and Type of Shares	Rs
30,00,000 Equity Share of Rs 10/- Each	3,00,00,000/-
Total	3,00,00,000/-

(G) RATIONAL OF THE SCHEME

The Scheme, when effective, will enable the Company to reduce the debt burden and come out of the current financial difficulty.

(H) As per the balance sheet as at 31st March 2019, Other Current Liabilities and trade payable appeared at Rs 26,228,078/- and Rs 11,04,646/-

(I) The effect of the Scheme on the following persons:

(a)	Key Managerial Personnel	NIL
(b)	Directors	NIL
(c)	Promoters	There will be reduced debt burden due to present scheme
(d)	Non-promoter Shareholders	
(e)	Depositors	NIL
(f)	Creditors	The scheme is inter alia for the compromise with secured creditors. The secured and unsecured creditors will be paid as detailed in the scheme.
(g)	Preference Shareholders	NA
(h)	Debenture holders	NA
(i)	Employees of the Company	Will be paid as mentioned in scheme

There is no effect of this scheme on material interests of Directors, Key Managerial Personnel.

(J) **The latest Financial Position of the Company** is as under:

1. Balance Sheet of ALPS as At 31st March, 2019

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

ALPS LIESURE HOLIDAYS PRIVATE LIMITED (CIN : U93040GJ2005PTC045256)

BALANCE SHEET AS AT 31ST MARCH, 2019

Particulars	Note No	As at 31 March,2019	As at 31 March,2018
		(`)	(`)
I. EQUITY AND LIABILITIES			
(1) Shareholder's Funds			
(a) Share Capital	5	30,000,000	30,000,000
(b) Reserves and Surplus	6	(12,925,279)	2,096,666
		17,074,721	32,096,666
(2) Non-Current Liabilities			
(a) Long-term borrowings	5	62,708,538	75,569,318
(b) Deferred tax liabilities (net)		18,308,437	1,124,436
		81,016,975	76,693,753
(3) Current Liabilities			
(a) Trade payables	6	3,104,646	7,540,249
(b) Other current liabilities	7	24,228,078	30,187,821
(c) Short term provisions	8	-	-
		27,332,724	37,728,070
Total		125,424,420	146,518,490
II. Assets			
(1) Non-current assets			
(a) Property, plant & Equipment			
(i) Tangible assets	9	100,119,713	112,607,771
(b) Non Current Investments	10	15,551,550	16,216,100
(c) Long term loans and advances	11	5,194,234	5,117,692
		120,865,498	133,941,563
(2) Current assets			
(a) Inventories	12	3,407,749	3,407,749
(b) Trade receivables	13	190,185	1,016,583
(c) Cash and Bank Balances	14	31,450	7,186,694
(d) Short-term loans and advances	15	-	-
(e) Other Current assets	16	929,550	964,502
		4,558,923	12,576,927
Total		125,424,420	146,518,490
Notes Forming part of the financial statements	1&2		

As per our report of even date
For Vinesh Mehta & Company
Chartered Accountants
Firm Registration No.: 115449W

Vinesh Mehta
(Proprietor)
Membership No. 038557
Ahmedabad, [illegible] 2019
UDIN : [illegible]

For and on Behalf of the Board of Director

Alpesh Ghadia
Director
DIN : 01029017

Rajnish Patel
Director
DIN : [illegible]
Ahmedabad, 7th Sept. [illegible] 2019

2. Statement of Profit and Loss of ALPSfor the year ended 31st March 2019

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

ALPS LEISURE HOLIDAYS PRIVATE LIMITED [CIN : U63040GJ2005PTC045256]
Statement of Profit and Loss for the year ended 31st March, 2019

Particulars	Note No	For the Year Ended 31 March, 2019	For the Year Ended 31 March, 2018
		(₹)	(₹)
I. Revenue from operations	17	10,468,655.08	21,683,537
II. Other Income	18	-	-
III. Total Revenue (I +II)		10,468,655.08	21,683,537
IV. Expenses:			
Expenses on Business operations	19	6,143,438.35	8,523,846
Changes in inventories	20	-	-
Employee benefit expense	21	4,594,838.00	7,293,838
Financial costs	22	29,838.00	2,850,265
Depreciation and amortization expense	9	4,428,601.12	3,868,195
Other expenses	23	12,794,684.38	7,470,643
Total Expenses(IV)		28,001,599.85	30,046,788
V.Profit before tax(III-IV)		(17,532,943.77)	(8,363,251)
VI. Tax expense:			
Current tax			-
Deferred tax liability/(Asset)		(2,510,998.64)	(1,201,959)
MAT Credit Entitlement			-
		(2,510,998.64)	(1,201,959)
VII. Profit for the year (V - VI)		(15,021,945.13)	(7,161,292)
VIII. Earning per equity share:			
(1) Basic		(5.01)	(2.39)
Notes Forming part of the financial statements	1&2		

As per our report of even date
For Vinesh Mehta & Company
Chartered Accountants
Firm Registration No : 115418W

Vinesh Mehta
(Proprietor)
Membership No. 049554
Vadodara, 9th September 2019
UDIN : 19049554AAAAEY6277

For and on behalf of the Board of Director

Mukesh Gandhi
Director
DIN : 01329017

Rajesh Patel
Director
DIN: 02136672
Vadodara, 9th September 2019

3. Cash Flow Statement for the year ended 31st March 2019

ALPS LEISURE HOLIDAYS PRIVATE LIMITED [CIN : U63040GJ2005PTC045256]
Statement of Profit and Loss for the year ended 31st March, 2019

Particulars	Note No	For the Year Ended 31 March, 2019	For the Year Ended 31 March, 2018
		(`)	(`)
I. Revenue from operations	17	10,468,656.00	21,683,587
II. Other Income	18	-	-
III. Total Revenue (I +II)		10,468,656.00	21,683,587
IV. Expenses:			
Expenses on Business operations	19	6,143,436.36	8,523,846
Changes in inventories	20	-	-
Employee benefit expense	21	4,594,838.00	7,293,838
Financial costs	22	29,534.00	2,890,065
Depreciation and amortization expense	9	4,478,601.12	3,868,195
Other expenses	23	12,794,884.38	7,470,643
Total Expenses(IV)		28,001,598.85	30,046,788
V.Profit before tax(III-IV)		(17,532,943.77)	(8,363,201)
VI. Tax expense:			
Current tax			-
Deferred tax liability/(Asset)		(2,510,998.64)	(1,201,909)
MAT Credit Entitlement		-	-
		(2,510,998.64)	(1,201,909)
VII. Profit for the year (V - VI)		(15,021,945.13)	(7,161,292)
VIII. Earning per equity share:			
(1) Basic		(6.01)	(2.39)
Notes Forming part of the financial statements	1 to 2		

As per our report of even date
For Vinesh Mehta & Company
Chartered Accountants
Firm Registration No.: 115443W

Vinesh Mehta
(Proprietor)
Membership No. 040554
Vadodara, 9th September 2019
UDIN : 19040554AAAAEY6277

For and on Behalf of the Board of Director

Akash Gandhi
Director
DIN : 01829019

Hitesh Patel
Director
DIN : 02436672

Vadodara, 9th September 2019

PART III

PROPOSAL OF MR. MEHUL THAKKAR - MASTER TOUCH CONCEPTS:

MR. MEHUL THAKKAR - MASTER TOUCH CONCEPTS agree to infuse Rs 11,00,00,000/- (Eleven Crores only) for acquisition of shares and as

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

unsecured loan. Mehul Thakkar proprietor of Master Touch Concepts will purchase the shares of Dr.Jignesh Haiharbhai Patel, Dr.Heena Jignesh Patel, Mr.Harihar Kachhiya, Mr.Kantibhai Patel, Mrs.Shiviben Patel, Mr.Ketan Patel, Mrs.Shilpa Mukesh Shah, Mrs.Chhay Alpesh Gandhi and Mrs.Kalpnaben Vasudev Gandhi. In total 56.79 % of Equity Share will be held by Mehul Thakkar. After the property of the ALPS is relinquished by the Secured Creditor the same may be transferred in the name of Master Touch Concept or to mutually decided name of entity of the Mehul Thakkar. The terms of consideration may be modify by parties with mutual consent to make the company going concern. MTC has issued Bank Guarantees of Rs 21, 00,000/- to SIDBI as commitment towards this scheme.

The End Use of consideration brought in by Master Touch Concepts/Mehul Thakkar will be as follow:

Sr	To whom to be paid	Amount	When to be paid
1.	SIDBI	6,36,00,000/-	1 crore will be paid up fort within 30 days on approval of the scheme by NCLT 23600000/- will be paid within 6 month from approval of scheme. 30000000/- will be paid within 181 to 365 days from approval of scheme.
2.	OBC	2,87,895/-	Entire amount will be paid within 60 days from approval of scheme.

3.	Sundry creditors	13,93,046/-	Entire amount will be paid within 60 days from approval of scheme.
4.	CIRP and Liquidation Cost	60,00,000/ or actual	Entire amount will be paid within 30 days from approval of scheme.
5.	unsecured loan (outgoing shareholders)	7345000	Entire amount will be paid within 24th to 36th month from approval of scheme.
6.	Employees	4,85,000/-	Entire amount will be paid within 30 days from approval of scheme.
7.	Resort up gradation and maintenance	75,00,000/-	Entire amount will be paid within 90 to 120 days from approval of scheme.
8.	Marketing and branding	53,00,000/-	Entire amount will be paid within 120 to 365 days from approval of scheme.
9.	Contigent Liabilities, Legal expense and other Misc Expenses	40,00,000/-	Entire amount will be paid within 0 to 180 days from approval of scheme.
10.	Working capital	50,00,000/-	Entire amount will be paid within 60 to 120 days from approval of scheme.
11.	Shareholder	Remaining amount after above	To be finalized after scheme is approved and available balance to be distributed to outgoing

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

			shareholder in equal part.

PART IV

ARRANGEMENT/COMPROMISE WITH CREDITORS:

The Scheme provides for arrangement / compromise with Creditors in the following manner:

Secured Creditors:

The dues of the SIDBI shall be paid Rs 6,36,00,000/- of the outstanding amount of the principal (hereinafter referred to as the Settlement Amount) in full and final settlement of their entire dues on coming into effect of this Scheme.

The Settlement Amount shall be paid as under:

- 1crore will be paid up fort within 30 days on approval of the scheme by NCLT

- 23600000/- will be paid within 6 month from approval of scheme.

- 30000000/- will be paid within 181 to 365 days from approval of scheme.

The dues of the OBC shall be paid Rs 2, 87,895/-of the outstanding amount of the principal (hereinafter referred to as the Settlement Amount) in full and final settlement of their entire dues on coming into effect of this Scheme.

The Settlement Amount shall be paid as under:

- Entire amount will be paid within 60 days from approval of scheme.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

Unsecured Creditors: 53

The dues of Unsecured Creditors Entire amount will be paid within 60 days from approval of scheme.

PART V

REORGANISATION OF CAPITAL:

The Scheme provides for re-organization of the Equity Capital in the following manner:

Present Equity Capital shareholding dated 30th November, 2019 is as below:

Sr NO	Name	Shareholder	% share holding
1	Mr.Alpesh Vasudev Gandhi	Rs.1,29,63,000/-	43.21
2	Mrs.Chhay Alpesh Gandhi	Rs.0,21,50,000/-	7.17
3	Mrs.Kalpnaben Vasudev Gandhi	Rs.0,07,86,000/-	2.62
4	Dr.Jignesh Haiharbhai Patel	Rs.0,52,57,000/-	17.52
5	Dr.Heena Jignesh Patel	Rs.0,27,83,000/-	9.28
6	Mr.Harihar Kachhiya	Rs.0,07,05,000/-	2.35
7	Mr.Kantibhai Patel	Rs.0,02,32,000/-	0.77
8	Mrs.Shiviben Patel	Rs.0,04,50,000/-	1.5
9	Mr.Ketan Patel	Rs.0,00,50,000/-	0.17
10	Mrs.Shilpa Mukesh Shah	Rs.0,46,24,000/-	15.41
	Total	**30000000**	100

Equity Capital shareholding after the scheme is approved will be as below:

Sr NO	Name	Shareholder	% share holding
1	Mr.Alpesh Vasudev Gandhi	12963000	43.21
2	Mr Mehul Thakkar	14101000	56.79
	Total	**30000000**	100

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

54

PART VI

ACCOUNTING TREATMENT IN THE BOOKS OF ACCOUNT OF ALPS LIESURE HOLIDAYS PRIVATE LIMITED

The Company will comply with all relevant Accounting Policies and Accounting Standards as regards to accounting for the reduction of capital (if any), writing back of loans and debit balance of Profit and Loss Account.

PART VII

AMENDMENT TO THE MEMORANDUM AND ARTICLES OF ASSOCIATION

Necessary amendment to Memorandum and Articles of Association shall be carried out (if required) to implement the scheme.

PART-VIII

GENERAL:

10. Subject to approval of NCLT, the Company, through its Board of Directors, may assent to any alterations/ modifications/ amendments to the Scheme or to any conditions or limitation that the Tribunal and/or any other authority may deem fit to approve, direct or impose or which may otherwise be considered necessary, desirable or appropriate by the Board of Directors of the Company. The Company may withdraw the Scheme if any alteration/ modification/ amendment thereto is not acceptable to it. The Board of Directors of the Company shall have authority to take all such steps as may be necessary, desirable or proper to resolve any doubts, difficulties or questions, whether by reason of any directive or order of the Tribunal and/or any authority or otherwise, howsoever arising out of or under or by virtue of the Scheme and/or any matter concerned or connected therewith.

11. This Scheme is conditional and subject to:-

a. Approval of the Scheme by requisite majority, Secured Creditors, and Equity Shareholders of the Company.

b. The requisite consents, approvals or permissions if any of the Government Authority or any other Statutory Agencies, which by law may be necessary for the implementation of this Scheme.

c. Sanction of the Scheme by the Tribunal as provided in section 230 and 232 of the Act and subject to such alterations/ modifications/ amendments, as the Tribunal may deem fit and direct.

d. Such other sanctions, permissions and approvals as may be required by law in respect of the Scheme being obtained.

f. Filing of the necessary certified copies of the said order or orders with the Registrar of Companies, Gujarat state at Ahmedabad.

12. Since this Scheme does not involve a "conveyance" of any property, the Order of the Tribunal sanctioning this Scheme under Section 230 of the Act shall not attract any stamp duty under the Bombay Stamp Act 1958.

Signatures:
Mr Mehul Thakkar Proprietor of Master Touch Concepts, POA holder of three Shareholder of Alps Liesure Holidays Pvt Ltd, namely shilpa Mukesh shah, Kalpnaben Gandhi, Chaya Gandhi

Date:28/02/2020

Place: Vadodara

Note:

To negotiate in the amount proposed in the above scheme, I/we are open to have open discussion with the competent officer having the authority to negotiate final amount in the scheme.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

56

DATE: 18-09-2020

To:
The Liquidator,
Mr. George Samuel,
Alps Liesure Holidays Pvt. Ltd.

Sub: ADDENDUM TO THE SCHEME OF COMPROMISE DATED 28-02-2020 IN ALPS LIESURE HOLIDAYS PVT LIMITED (IN LIQUIDATION)

Sirs,

As you know the Scheme of Compromise dated 28-02-2020 in the Alps Liesure Holidays Pvt Limited (In Liquidation) Corporate Identification No: U63040GJ2005PTC045256 submitted by me was consented to by the Shareholders and Unsecured Creditors and voted as assented to in the NCLT convened meeting on 05-09-2020. However, the Scheme was not consented to and dissented by the SIDBI which has a share of 99.7% in value of claims and voting. As such the scheme can be stated as not passed the tests as per the order of the Hon'ble NCLT, Ahmedabad.

I have great pain in hearing the failure, however, I also appreciate the concerns of SIDBI that the Scheme value is not matching the expectations of the SIDBI. I still believe that the Scheme should happen in the benefit of all the stakeholders and is ready to revise the value offered to SIDBI to its satisfaction level. In accordance therewith this request letter is given as follows:

(a) I am ready to increase the stake of payment towards secured creditor SIDBI to Rs.8,70,00,000/- (Rupees Eight Crore Fifty Lakhs only) payable including CIRP and Liquidation cost as per the following schedule:

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

- 0,60,00,000/- will be paid on 55th day from receiving NCLT order
- 1,00,00,000/- will be paid on 85th day from receiving NCLT order
- 1,00,00,000/- will be paid on 115th day from receiving NCLT order
- 1,00,00,000/- will be paid on 145th day from receiving NCLT order
- 0,65,00,000/- will be paid on 175th day from receiving NCLT order
- 1,00,00,000/- will be paid on 205th day from receiving NCLT order
- 1,00,00,000/- will be paid on 235th day from receiving NCLT order
- 1,80,00,000/- will be paid on 265th day from receiving NCLT order

- (it will be taken care that Sidbi receives 50% of settled amount before 31st March 2021)

(b) The above offer is excluding the CIRP and Liquidation Cost payable which is estimated to Rs.65 ,00,000/- or higher amount of cost incurred till the order of the Hon'ble NCLT. This cost will be paid / reimbursed as below after the order of the Hon'bleNCLT.

- 0,35,00,000/- will be deposited on 7th day of receiving NCLT order. among which CIRP cost & liquidation cost shall be recovered
  0,15,00,000/- already deposited in liquidation account at the Time of submission of scheme
  (hence Rs. 50,00,000/- will be balance towards it.
- 0,15,00,000/- will be as balance of liquidation cost due after 05.10.2020 to be paid on55th day after receiving NCLT order

(c) There will be no changes to the amounts payable and schedule of payments to the other stakeholders, namely other Secured Creditors, Unsecured Creditors and the Shareholders of the Company.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

(d) The additional funds payable in the case of SIDBI of Rs.2,34,00,000/- [Rs:8,70,00,000/- (-) Rs.6,36,00,000/-] will be paid from out of funds that will be provided and available from the working capital, resort up gradations and marketing branding for initial payments and for later fund to be made available from the sources of proposed promoters.

I request to kindly consider the above proposal and inform the concerned stake holder accordingly so that the proposal can be placed before the Hon'ble NCLT for consideration.

Mehul Thakkar

Copy to: The SIDBI
The Chairperson of the NCLT convened Meeting

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD